

19SMCV00334 19SMCV00334

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Case Number: 19SMCV00334 Hearing Date: September 15, 2026 Dept: N

TENTATIVE RULING

Plaintiff Sand and Sea Inc. ("Plaintiff") Motion Request to for Undertaking Requiring AquaRecycle, LLC to File an Undertaking is GRANTED.

Appellant AquaRecycle, LLC is ordered to post an undertaking of \$153,385.50 if it uses an admitted surety insurer, or \$204,514.00 if it does not, as a condition of any stay of an enforcement.

Plaintiff Sand and Sea Inc. to give notice.

REASONING

Plaintiff moves for an order requiring Appellant to file an undertaking in at least the amount of \$348,000 as a condition of any stay of enforcement pending its appeal from this Court's order amending the judgment herein to add AquaRecycle, LLC as a judgment debtor. Plaintiff argues that Appellant should be required to post an undertaking because otherwise, Plaintiff will be prejudiced by continued delay in collection, loss of use of the judgment funds, accrual of interest, and the risk that assets will be placed beyond reach during the appeal.

"Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for . . . [m]oney or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action." (Code Civ. Proc., § 917.1, subd. (a)(1).) Here, the Order added Appellant as a judgment debtor and thus, one that makes Appellant liable for the payment of money payable by Appellant.

Furthermore, in *People v. American Surety Co.* (2019) 31 Cal.App.5th 380 the court explained that "a surety who appeals only from a postjudgment order denying its motion to vacate the summary judgment and to exonerate the bail bond may not obtain a stay of enforcement of the underlying summary judgment by filing an undertaking pursuant to section 917.1. In relevant part, section 917.1 provides: "Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: [¶] (1) Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action." (§ 917.1, subd. (a)(1), italics added.) An order denying a motion to vacate a money judgment is a 'negative order[] denying relief to defendant,' and not an order directing the 'defendant pay money to plaintiff.'" (Id. at pp. 391–392.) The opposite situation is presented here. The Order was not a negative order that denied relief to Appellant but one that held that Appellant was a judgment debtor. The effect of the Order is that the money judgment has been entered against Appellant as a judgment debtor. (Code Civ. Proc., § 680.250 ["Judgment debtor" means the person against whom a judgment is rendered"];

Code Civ. Proc., § 680.270 [“‘Money judgment’ means that part of a judgment that requires the payment of money”; Highland Springs Conference & Training Center v. City of Banning (2019) 42 Cal.App.5th 416, 426 [“a section 187 motion, if granted, merely allows the judgment creditor to enforce the now-amended judgment against the additional judgment debtor”].)

Even if the Order is not one for “money or the payment of money,” Code of Civil Procedure section 917.9 also supports an undertaking. “The perfecting of an appeal shall not stay enforcement of the judgment or order in cases not provided for in Sections 917.1 to 917.8, inclusive, if the trial court, in its discretion, requires an undertaking and the undertaking is not given, in any of the following cases . . . [a]ppellant is required to perform an act for respondent’s benefit pursuant to judgment or order under appeal.” (Code Civ. Proc., § 917.9, (a)(2).) The Order found that Appellant was a judgment debtor and as such is liable for the judgment amount owed to Plaintiff. Appellant is required to pay Plaintiff the judgment amount, which is an act for Plaintiff’s benefit pursuant to the Order. Thus, an undertaking is warranted as a condition for a stay to apply.

Following Code of Civil Procedure section 917.1, “[t]he undertaking shall be for double the amount of the judgment or order unless given by an admitted surety insurer in which event it shall be for one and one-half times the amount of the judgment or order.” (Code Civ. Proc., § 917.1, subd. (b).) The judgment awarded was for \$102,257.00. (October 12, 2021 Judgment.) If Appellant uses an admitted surety insurer, the undertaking is ordered in the amount of. \$153,385.50. If Appellant does not use an admitted surety insurer, the undertaking is ordered in the amount of \$204,514.00.

Accordingly, plaintiff Sand and Sea Inc.’s Motion for Order Requiring AquaRecycle, LLC to file an undertaking as a condition of any stay of enforcement pending appeal is GRANTED. Appellant AquaRecycle, LLC is ordered to post an undertaking of \$153,385.50 if it uses an admitted surety insurer, or \$204,514.00 if it does not, as a condition of any stay of an enforcement.